

Out-Of-State Donors and Legislative Surrogacy in the U.S. Senate

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Abstract

Studies show that the extraordinary growth in campaign expenditures is fueled by a small, elite subset of the donor population that gives generously to candidates across the country. It is often assumed that the wealthy influence policy outcomes through such gifts to politicians; however, the representational benefits of giving to politicians out-of-state are unclear. What do donors gain legislatively when they give to legislators living out-of-state? I study the campaign financing of US senators over three decades (1989–2018) and find that senators receive the most money from out-of-state donors when they face reelection and risk losing. In this context, donors invest in the collective benefits of party representation when they give money to out-of-state senators. However, when giving to senators “off cycle,” out-of-state donors behave as “consumers” who reward senators for the positions they have taken. Each bill sponsored by a senator when they are not up for reelection leads to a corresponding increase of about 1% in receipts from out-of-state donors. These results offer a more complete view of the legislative surrogacy that the wealthy receive when they give to politicians out-of-state and suggest possible links between campaign contributions and public policy outcomes.

Keywords

campaign finance, legislative behavior, elections, senate, representation, bill sponsorship

The costs of campaigning in the US have skyrocketed over the past three decades, outpacing inflation, the growth of healthcare spending, and even college tuition. In 1990, candidates running in 35 Senate races raised a collective \$212 million. By 2020, total candidate fundraising in 35 Senate races exceeded \$2.1 billion—an increase of 900%.¹

The campaign financing literature shows that the bulk of money donated to congressional campaigns comes from “non-resident” donors who live outside of the district (e.g., Gimpel, Lee, and Pearson-Merkowitz 2008; Grenzke 1988; Sievert and Mathiasen 2023). The individuals engaged in this type of giving constitute a small, but highly active, elite subset of the donor population, geographically concentrated in a handful of wealthy neighborhoods (Bramlett, Gimpel, and Lee 2011; Gimpel, Lee, and Kaminski 2006). Members of both major parties rely on this small network of wealthy people to finance their campaigns (Cho and Gimpel 2007; Gimpel, Lee, and Kaminski 2006). In the context of increasing electoral competition (Lee 2009, 2016), non-resident donors “spread their dollars widely” (Rhodes, Schaffner, and La Raja 2018: 514) to “make a difference for party control of seats” (Gimpel, Lee, and Pearson-Merkowitz 2008).

What exactly do non-resident donors receive legislatively in exchange for their gifts? In principle, giving to a political campaign affords donors—who tend to be older, richer, and whiter than the rest of the public (Francia et al. 2003)—special access that few citizens enjoy (Kalla and Broockman 2016). Through their gifts to out-of-state legislators, donors receive a form of “surrogate representation” in which legislators “act for” their interests (Mansbridge 2003; see also Baker 2020; Gimpel, Lee, and Pearson-Merkowitz 2008). Yet little is known about the legislative mechanisms that link donor preferences with public policy outcomes.

Although there is scant evidence for a *quid pro quo* relationship between donors and elected officials (Ansolabehere, Figueiredo, and Snyder 2003), the

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interests of the wealthy are reflected in public policy outcomes (Gilens and Page 2014). Studies show that reliance upon money from non-resident donors steers legislators away from the preferences of their constituents (Baker 2016) toward national donor preferences (Canes-Wrone and Gibson 2019; Canes-Wrone and Miller 2022) and contributes to a nationalization of US elections (Sievert and Mathiasen 2023).² Although less scholarship has investigated campaign financing from the perspective of legislators and their incentives to fundraise, legislators use position-taking tactics, such as bill sponsorship and earmarking, to increase campaign contributions (Rocca and Gordon 2010, 2013).

To investigate the links between campaign financing and legislative behavior, I study the fundraising of US senators. Because senators serve staggered, 6-year terms and typically run for reelection once every three election cycles, it is possible to observe how legislators moderate their behavior when reelection is imminent (and they are accountable to voters for their actions) and when reelection is distant (and they enjoy a degree of job security) and how this affects fundraising outcomes. I model 30 years of fundraising and legislative behavior outcomes in the Senate (1989–2018) and find that the election calendar shapes the relationship between legislators and donors. Senators receive a flood of contributions from out-of-state donors simply by running for reelection, with those at risk of losing receiving the most. This is consistent with the view of out-of-state donors as strategic actors who “invest” in the collective success of the party. However, when giving to senators “off cycle,” out-of-state donors act like consumers who reward legislators for their position taking. My model estimates that sponsoring one bill leads to a corresponding increase in out-of-state receipts of about 1% among senators not facing reelection.

These findings shed light on the legislative surrogacy that the wealthy gain from their gifts to out-of-state senators and provide a more complete view of the symbiotic relationship between donors and legislators in the US Congress.

Literature Review: Theories of Campaign Giving

Why do citizens give money to political campaigns, and what exactly do they gain in return for their gifts? Since the enactment of federal campaign finance disclosure laws in the 1970s, scholarship has sought to understand campaign donors, their motivations, and the representational consequences of the private financing of elections, largely through the lens of political behavior. Within this literature, there are two broad views on the motivations of campaign donors. Each of these frameworks has different

implications for understanding the relationship between donors and the politicians they support. One view holds that political giving is a form of “investment,” wherein donors seek some future benefit such as access and influence. A second view sees political giving as a “consumption good” that donors value in and of itself—for example, as an expression of support for a politician or their ideas, or as a form of social capital (see Ansolabehere, Figueiredo, and Snyder 2003).

One of the key differences between the investment and consumer models of political giving is the role that politicians play. Whereas the investment model views politicians as delegates in a transactional exchange with donors seeking access and influence, the consumer model sees legislators as strategic actors who activate support from donor constituencies through their political posturing.

The Investment Model

The investment model for understanding campaign contributions sees donors as strategic investors in the political marketplace whose gifts purchase future access, attention, and influence. The donor–politician relationship is transactional: in exchange for their gifts, donors receive an expanded form of representation that often entails access to legislators and prioritization of their interests (e.g., Kalla and Broockman 2016; La Raja and Shaffner 2015; Rhodes, Schaffner, and La Raja 2018). Accordingly, the investment model of campaign giving assumes that donors are the instigators in the donor–politician relationship. Donors give money to politicians in the hopes of a future return on their investment.

Research on campaign contributions suggests that firms acting through Political Action Committees (PACs) tend to give as investors hoping to gain access and influence by donating to politicians in positions of power and influence. For example, Barber’s (2016) survey of campaign donors during the 2012 Senate election finds that PACs tend to be access-oriented when giving money to candidates. Similarly, Box-Steffensmeier and Grant (1999) find that committee chairs and more “effective” legislators tend to receive more contributions from PACs, while Gui (2023) has found that lobbyists give money to legislators with higher legislative effectiveness scores, which implies an investment orientation in their giving.³

The Consumer Model

An alternative model for understanding the motivations of campaign donors holds that donors are “consumers” who reward candidates for their position taking. Although donors’ policy and ideological preferences inform how and to whom they allocate their gifts (e.g., Barber, Canes-

Wrone, and Thrower 2017), they are not investment-oriented in the sense that they expect a specific return. Rather, the value of the gift is as a form of political expression—for example, as a gesture of support for a candidate with whom they agree or admire or whose ideas they endorse.

This view of campaign giving departs from the investment model in that it implies the politician, rather than the donor, is the first-mover (La Raja and Wiltse 2012). Politicians appeal to donors for support and fundraise through their behavior and position taking (e.g., bill sponsorship, floor votes, and press interviews), either directly or indirectly via mass media, and donors subsequently respond. This model implies that politicians (and not simply donors) are strategic investors who use their public posturing to mobilize donors.

Legislators have a number of position-taking tactics at their disposal, which they use to influence the political behavior of the public. A large volume of literature on roll-call voting shows that citizens weigh and respond to the floor voting positions of legislators (e.g., Carson et al. 2010; Crisp and Driscoll 2012; Koger and Lebo 2017; Lindstadt and Vander Wielen 2014; Mayhew 1974; McDermott and Jones 2005; Shapiro et al. 1990). Donors may reward legislators who take ideologically extreme voting positions on the floor (Ensley 2009), particularly small dollar donors (Albert and La Raja 2020; Keena and Knight-Finley 2019). Bill sponsorship is an alternative position-taking tactic that is often used by legislators. In contrast to floor voting, legislators have discretion about which bills they sponsor and why (Highton and Rocca 2005). Consequently, a legislator's "choice of bills is a strong indicator of which issues he or she wants to be associated with" (Schiller 1995, p.187). For members of Congress, bill sponsorship (Rocca and Gordon 2010) and earmarking (Rocca and Gordon 2013) activities can be effective tools for generating campaign contributions from interest groups and lobbyists. Other work has shown that legislators can raise significant sums from donors simply by appearing on cable TV news (Benson and Limbocker 2023).

Theory: The Motivations of Non-Resident Donors

The campaign finance literature implies that different types of donors have different goals for giving to political campaigns. PACs and lobbyists often give strategically to incumbents to secure future access and influence. Small dollar donors tend to reward politicians for their ideology and policy congruence, as an expression of solidarity or support. The scholarship on non-resident donors shows that, during campaign season, these donors give

strategically to invest in the political party system. Although they represent a tiny portion of the broader donor base, non-resident donors are "politically sophisticated" in their giving (Baker 2020) and donate widely to co-partisans running in competitive races across the country, with the goal of capturing a legislative majority for the party (Gimpel, Lee, and Pearson-Merkowitz 2008; Rhodes, Schaffner, and La Raja 2018).

However, outside of the context of campaign season, little is known about the giving patterns of non-resident donors. The dominant focus within empirical studies of campaign finance has been on US House elections, typically through cross-sectional studies of election cycles. Studying the House is methodologically convenient because it yields a large sample size of legislators who follow a uniform, 2-year election calendar. However, the decline in the incumbency advantage (Jacobson 2015) along with the rise of the "perpetual campaign" cycle (Lee 2016) means that members of Congress must increasingly campaign and fundraise throughout their terms. These trends obscure the links between legislative behavior and fundraising outcomes in the House.

The Senate offers an alternative glimpse into the relationship between money and legislative behavior through the study of "off-cycle" legislators who do not face reelection during a given 2-year congress. This provides a way to control for the powerful effects of the election cycle on fundraising outcomes, as well as a means of testing the two competing models of giving and whether they shed light on the motives of wealthy donors who give to senators across the country.

The investment theory of giving assumes that out-of-state donors who give to senators "off-cycle" do so to obtain access and influence. The implication is that donors will target legislators in positions of power and influence, such as members of the majority party, committee chairs, and "effective" legislators with a proven track record of success (e.g., Box-Steffensmeier and Grant 1999; Gui 2023). By contrast, the consumer model assumes that campaign contributions are not spontaneous; rather, donors give because they are asked to give by politicians. Legislators use the tools of their office, such as bill sponsorship and voting, to mobilize donors (Rocca and Gordon 2010). When facing reelection, senators increase their fundraising appeals, particularly when at risk of losing. Off-cycle, senators use their office to build a "war chest" for the next campaign, particularly those who anticipate an expensive reelection campaign, such as senators from high population states (Lee and Oppenheimer 1999).

Table 1 shows the theoretical links between legislative behavior and out-of-state receipts for reelection and "off-cycle" senators. Note that both models predict increased receipts when "at risk" senators face reelection. Under the

Table 1. Predicted Effects on Receipts From Out-of-State Donors.

Variable	Investor Model		Consumer Model	
	During Reelection Cycle	Off-Cycle	During Reelection Cycle	Off-Cycle
At risk of losing	+		+	
Majority party member	+	+		
Committee chair	+	+		
Bill sponsorship			+	+
Ideology/Extremism			+	+
State population size				+

consumer model, this is because vulnerable legislators ramp up their fundraising appeals as Election Day approaches. Under the investment model, this is because national party donors give generously to help the party win.

Research Design

To study the empirical links between campaign financing and legislative behavior, I focus on the U.S. Senate, where legislators serve 6-year terms with approximately a third of the chamber elected every 2 years. As I have argued, this institutional feature of the Senate makes it possible to observe the effects of legislative behavior on fundraising among senators who are not actively campaigning for reelection.

For my dependent variable—money contributed to senators’ campaigns by out-of-state donors—I draw upon 30 years of campaign finance records published by the Federal Election Commission (FEC). Since the 1970s, all federal candidates have been required to submit “itemized” reports to the FEC that include information about their donors, which can be used to trace the source of each donation. To compare the campaign receipts of senators raising money in multiple election cycles, I referenced the master itemized individual contributions dataset, published on the FEC website, which includes for each 2-year election cycle all contributions received by all federal candidates from individuals who have given more than \$200 cumulatively (e.g., “large donors”).⁴

Using this data, I estimated the total amount of money received in contributions from individuals living out-of-state (based on the donor’s home address) for each senator for each 2-year election cycle in which they served in the Senate and reported receipts. I include data going back to the 1989–1990 cycle (when the FEC lowered the public disclosure threshold for itemized donations from \$500 to \$200 or more) through the 2017–2018 cycle. I adjusted these estimates for inflation based on the value of the US dollar in 2018. While most senators in this sample reported receipts from their principal campaign committees, a number of senators received campaign contributions

from more than one authorized committee. In these cases, I aggregated the receipts from multiple authorized committees.

For a preliminary view of how the reelection calendar shapes campaign financing outcomes, Figures 1 and 2 report the average total receipts from donors living out-of-state among senators who face reelection during a 2-year election cycle (Figure 1) and among “off-cycle” senators who do not (Figure 2).⁵ The online appendix reports additional details, including the size of each of the “reelection” and “off-cycle” groups during each 2-year congress and the average number of donations received.

Consistent with the scholarship on out-of-district giving in House elections, the average amount received from individuals living out-of-state has increased over the past three decades in both groups. However, the out-of-state money raised by senators is substantially higher in the “reelection” group (Figure 1). Although inflation-adjusted receipts during the 1990s were relatively stable, with the average amount raised between \$1–2 million, there is a marked increase in average receipts after the 2001–02 election cycle, with spikes occurring in the 2006 and 2018 midterm cycles. With the exception of the 2006 and 2018 cycles, there does not appear to be a noticeable difference between presidential and midterm election cycles. This is largely consistent with view of out-of-state donors as “investors” who give to help the party win.

Figure 2 shows the average out-of-state receipts from “off-cycle” senators who did not face reelection, including those who retired. As evident, since the 1990s off-cycle senators have received substantial sums of money from out-of-state donors. The average amount received has increased at a faster rate for senators when they are off-cycle than when they face reelection. In the 1990s, the receipts reported by senators off-cycle ranged between \$100,000 and \$200,000. Averages in the 2000s and 2010s were between \$300,000 and \$600,000. This represents a threefold increase over 30 years that cannot be attributed to inflation.⁶

Among off-cycle senators, election timing appears to factor into the amount of money contributed by out-

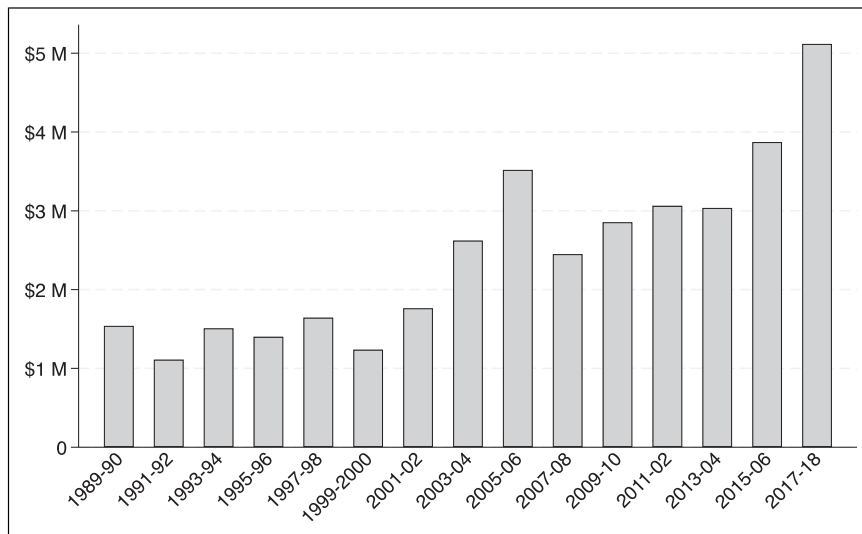


Figure 1. Average receipts from out-of-state donors (in 2018 dollars) among senators facing reelection.

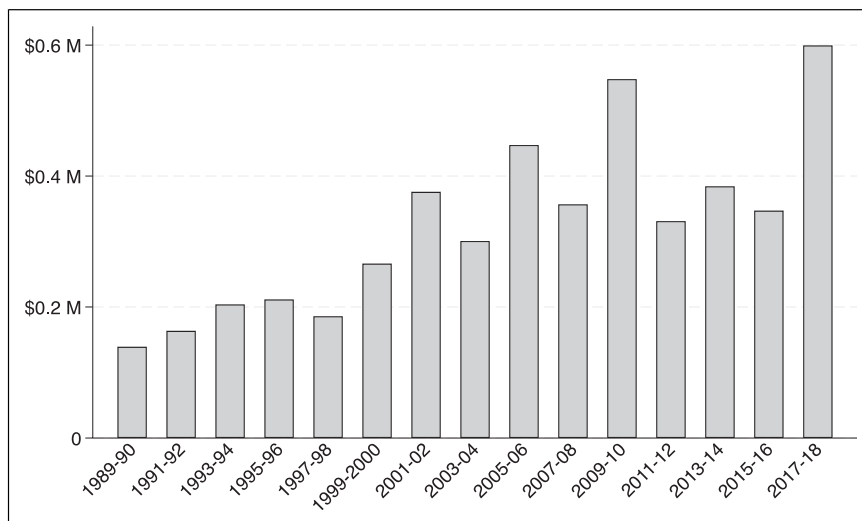


Figure 2. Average receipts from out-of-state donors (in 2018 dollars) among senators “off-cycle.”

of-state donors. Since the 1990s, each midterm election is associated with a spike in giving by out-of-state donors. The biggest increases occurred in the 2005-06, 2009-10, and 2017-18 election cycles, with smaller increases occurring in the 2001-02 and 2013-14 cycles. One possible explanation for the increase in off-cycle giving is that, in the absence of a presidential election, donors allocate more resources to congressional candidates.

Empirical Model: Out-of-State Contributions to Senators

That most of the money from out-of-state donors is given to senators facing reelection corroborates the

view that this group of donors gives to help the party win elections, which is consistent with the “investor” model of giving. But why do out-of-state donors give to Senate candidates when they off-cycle? If wealthy donors are motivated to give purely for party control, the tactic of giving to a senator who is not currently facing reelection makes little sense, particularly when this money could be spent supporting other candidates running in competitive races. One possible explanation is that, like PACs and lobbyists, wealthy out-of-state donors “invest” in off-cycle senators to secure access and influence. Alternatively, if legislators strategically appeal to these donors when they are off-cycle as part of a long-term fundraising strategy, out-of-state donors may give to reward legislators for the positions they have taken (i.e., as “consumers”).

Although there are many possible approaches to modeling senators' out-of-state campaign receipts, one I employ here is multilinear regression with legislator and congress fixed effects. Using a fixed effects model allows me to control for variation in fundraising between senators and across election cycles.⁷ The dependent variable in the model is inflation-adjusted receipts from out-of-state donors (in 2018 dollars), converted to log10 scale. Because the range in receipts from out-of-state donors spans several orders of magnitude, converting this data to log scale allows me to employ linear modeling.

I also include a number of independent variables. To control for the effects of the reelection calendar, I include the binary variable "reelection," which is coded 1 when a senator ran for reelection during a given 2-year congress/election cycle and coded 0 in all other circumstances.⁸ I interact this "reelection" variable with each variable of interest in my model. For example, in the model I include the binary variable *Midterm*, which is coded 1 for senates during which a midterm election was held. As [Figure 2](#) suggests, there appears to be a midterm election effect for off-cycle senators, but for senators running for reelection ([Figure 1](#)) there is evidently no similar effect. Accordingly, I include in my model *Midterm* and the interaction term *Midterm * Reelection* to estimate the fundraising effects of a midterm election for both off-cycle senators and reelection senators.

To test the investor theory of giving, which implies that donors give money to secure future rewards (e.g., influence and access), I include the binary variable *Majority Party Member*, which identifies members of the party with a legislative majority, who are presumably better positioned to advance legislation (for the 107th senate, I included only Democrats in this group). Following the approach of [Box-Steffensmeier and Grant \(1999\)](#), I also include a binary variable *Committee Chair*, which is coded 1 for all senators who chaired a committee during a given 2-year congress. Although a "small set of chairs...play a disproportionate role in policymaking," committee chairs are generally more powerful than rank-and-file members and tend to receive more campaign contributions than their colleagues ([Berry and Fowler 2018](#), p.1).

To test the consumer model of giving, I include two measures of legislative position-taking. *Bills Sponsored* is the number of substantive bills sponsored by a senator during a given 2-year congress, based on the data published by the Center for Legislative Effectiveness ([Volden and Wiseman 2014](#)).⁹ For the congresses included in my dataset, the average number of substantive bills sponsored by senator ranged from 19 in 1995–96 (with a standard deviation of 12) to 39 in 2005–06 (with a standard deviation of 23). I also include the variable *Floor Vote Extremism* based upon senators' "one-congress-at-a-time"

DW-NOMINATE scores ([Nokken and Poole 2004](#); [Poole and Rosenthal 1997](#)), which provides a measure of a legislator's relative conservatism based on roll call voting records. In order to model the behavior of liberal and conservative senators together, I include in my model the absolute value of a legislator's first dimension score, which can be interpreted as a measure of extremism in voting.

I also include the variable *Voting Age Population* (VAP) based on the US Census Bureau's Current Population Survey to model the effects of state size on fundraising. [Lee and Oppenheimer \(1999\)](#) have found large-state senators tend to be more active in fundraising off-cycle, due to the costs of running a campaign in a populous state. [Keena \(2019\)](#) has found that state population size does not impact fundraising from out-of-state donors among senators facing reelection. Accordingly, including the state VAP variable provides an additional test of the consumer model of giving while controlling for the election calendar.

As well, I include the binary variable *At Risk*, which has a value of 1 for senators facing reelection who were been projected by election forecasting organizations to be in a competitive race, based on CQ's Voting and Elections database (for the 1990–2002 elections) and the forecasts published by the Center for Politics at University of Virginia (for the 2004–2018 elections).¹⁰ As [Table 1](#) implies, both the investor and consumer models predict an increase in receipts among reelection facing senators who are at risk of losing, albeit for different reasons. I also ran versions of my model to include a variable controlling for party; however, the inclusion of this variable did not substantively impact the results so it is not included in the model.

Results

The results of the model, which are reported on [Table 2](#), illuminate the powerful effects of the election calendar on fundraising outcomes and suggest that out-of-state donors give as both "investors" and "consumers" depending on the electoral context.¹¹

Among senators facing reelection, the results are consistent with an investment model of donor behavior. The variables *Reelection* and *At Risk* are each associated with a significant increase in out-of-state receipts. The model estimates that senators running for reelection receive a boost in out-of-state dollars of approximately $10^{0.935}$ (an increase of about 760%). This reflects the considerable differences in average receipts reported among senators facing reelection ([Figure 1](#)) versus senators not up for reelection ([Figure 2](#)). Senators who are forecasted to be at risk of losing their seats receive an addition boost in out-of-state money of approximately

Table 2. Campaign Contributions Received (in 2018 Dollars) From Out-of-State Donors.

	b	S.E.
At risk	0.204*	0.0740
Reelection	0.935*	0.264
Majority member	0.0677	0.0411
Maj. Member * reelection	−0.00485	0.0732
Committee chair	−0.0214	0.0598
Committee chair * reelection	0.138	0.100
Bill sponsorships	0.00364*	0.00125
Bill sponsorships * reelection	−0.00300	0.00158
Floor voting extremism	−0.125	0.284
Floor voting extremism * reelection	−0.121	0.219
Voting age population	2.89*	0.508
Voting age population * reelection	0.0879	0.0754
Midterm election cycle	0.0669*	0.0340
Midterm election cycle * reelection	0.0285	0.0663
Constant	−5.01*	1.72
Number of observations	1,441	
Number of senators	271	
Number of congresses	15	
Fixed member effects	Yes	
Fixed congress effects	Yes	
R ² within	0.555	
R ² between	0.0674	
R ² overall	0.113	

* $p < 0.05$.

10^{0.204} (a 60% increase). These findings corroborate previous research that shows that non-resident donors give to candidates as part of a broader strategy of winning power in Congress (Gimpel, Lee, and Pearson-Merkowitz 2008). Indeed, these results show that a senator can receive considerable sums of money from out-of-state donors simply by running for reelection, with those in competitive races receiving the most money.

However, among “off-cycle” senators who do not face reelection, the results of the model do not support an investment model of giving. The model estimates that the effect of being a committee chair actually reduces the amount of money received from out-of-state donors. However, the standard errors associated with this variable and its interaction with *Reelection* are both too large to draw firm conclusions about the direction or magnitude of the effect. In short, the model does not provide evidence to suggest that committee chairs’ fundraising from out-of-state donors are different than senators who are not committee chairs. Similarly, the investor model predicts that out-of-state donors will give more to members of the majority party; however, the results provide only weak support for this claim. The model estimates that being in the majority increases a senator’s out-of-state receipts by about 17%, but this

effect falls just beyond the range of statistical significance ($p = 0.10$).

By contrast, the results of the model appear to support a consumer theory of giving among senators who are “off-cycle.” Among senators not running for reelection, the bill sponsorship variable is associated with a positive and statistically significant increase in money received from out-of-state donors. The model estimates that sponsoring one substantive bill will yield a corresponding 10^{0.0036} increase in dollars from out-of-state donors (an increase of about 0.83%). The effects of bill sponsorship on fundraising are considerable when scaled up. Figure 3 shows the marginal effects of bill sponsorship on out-of-state receipts. Whereas the effect of not sponsoring any legislation for an off-cycle senator is an estimated out-of-state receipts haul of about \$83,600, sponsoring just 10 bills increases the predicted receipts to approximately \$90,900, while sponsoring 50 bills increases the predicted haul to about \$127,000. Thus, bill sponsorship represents a potentially lucrative strategy for mobilizing fundraising support from wealthy out-of-state donors. However, this effect does not extend to senators when they face reelection. The magnitude of the effect associated with the *Bill Sponsorship * Reelection* interaction variable suggests a comparable reduction in out-of-state receipts among senators facing reelection that effectively nullifies the fundraising benefits of bill sponsorship ($p = 0.057$). In short, out-of-state donors appear to reward “off-cycle” senators for sponsoring legislation, but bill sponsorship has no apparent impact on fundraising from out-of-state donors when senators face reelection.

While these findings show that out-of-state donors give as “consumers” in response to senators’ position taking, there is little evidence that they reward senators who take ideologically extreme positions, as research on small dollar donors has found (e.g., Albert and La Raja 2020; Bonica and Shen 2014; Keena and Knight-Finley 2019). Indeed, the direction of the effect associated with floor vote positioning suggests the opposite: that out-of-state donors are less inclined to give to extremists. However, the standard error associated with the effect is very large ($p = 0.63$); the model does not provide strong evidence that out-of-state donors pay much attention to senators’ floor voting scores.

As well, the model replicates the findings of Lee and Oppenheimer (1999), who find that senators from high population states strategically fundraise “off-cycle” to pad their war chests, and Keena (2019), who finds that state size has no impact on fundraising during election season. For each log10 increase in state VAP, the model estimates a corresponding 10^{2.89} (~680%) increase in receipts from out-of-state donors. However, the standard error associated with the *State VAP * Reelection* variable is too large to draw conclusions about whether and how facing

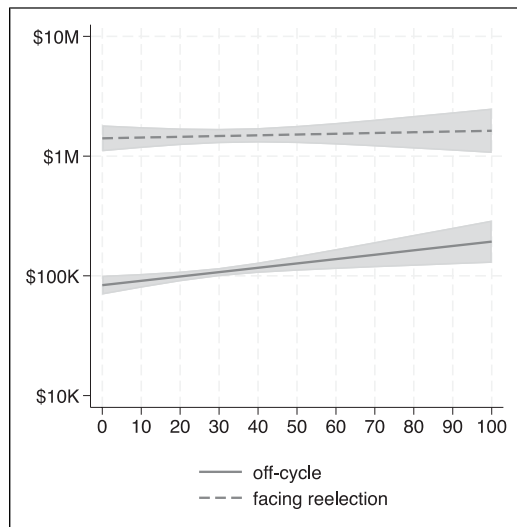


Figure 3. Predicted marginal effects of bill sponsorship on out-of-state receipts.

reelection moderates this effect. These findings provide additional evidence that senators behave strategically to fundraise when they are off-cycle, which is consistent with the consumer model.

Lastly, the model shows that election timing affects out-of-state receipts for senators not running for reelection. The most lucrative periods for fundraising off-cycle occur during midterm elections, when there is not a concurrent presidential election and wealthy donors presumably have more money to spend. During midterm elections, off-cycle senators receive an increase of about $10^{0.067}$ in out-of-state receipts (an increase of about 17%). One possible explanation for this midterm effect is that donors are simply more generous when there is not a concurrent presidential race and more apt to give money to legislators whose seats are not immediately at risk.

Discussion

In this article I have asked: what do the wealthy gain legislatively in exchange for their campaign contributions to out-of-state politicians? The answer to this question depends on electoral context. During campaign season, out-of-state donors flood senators with donations, with the most money going to those at risk of losing. This is consistent with the view of out-of-state donors as strategic “investors” who invest in the collective success of the party. By contrast, when giving to senators who are off-cycle, out-of-state donors behave more like passive consumers who reward legislators for the positions they have taken. In this context, it is the legislators who behave like strategic investors: senators can use bill sponsorship as a tool for developing relationships with donors as part

of a strategy of increasing fundraising yields to stave off future challengers.

These findings offer a more complete window into the legislative surrogacy that the wealthy gain through their gifts to out-of-state politicians. One obvious “reward” donors receive in exchange for their gifts to out-of-state senators during election season is the collective benefits of party representation, which may lead to favorable public policy outcomes that occur when their preferred party controls Congress. In this regard, the nationalization of elections (Sievert and Mathiasen 2023) and the shift of legislators toward national donor preferences (Canes-Wrone and Gibson 2019; Canes-Wrone and Miller 2022) may partially explain how the wealthy have come to dominate public policy outcomes in US politics (Gilens and Page 2014) through their giving to co-partisan legislators out-of-state.

On the other hand, given the increased cost of campaigning, senators—particularly those from large states—have a strategic incentive to fundraise off-cycle and cultivate long-term relationships with wealthy donors. Bill sponsorship is one tactic that senators use to mobilize support from out-of-state donors when they are off-cycle and do not face reelection. Although the representational benefits of bill sponsorship are in some ways symbolic—simply sponsoring a bill does not guarantee it will be enacted into law—the legislative rewards are tangible. Sponsoring legislation is a signal to donors that a legislator values and prioritizes their interests and will continue to do so into the future (e.g., Highton and Rocca 2005; Rocca and Gordon 2010). This suggests an additional channel through which the wealthy influence policy outcomes.

These findings provide important lessons for future studies of campaign finance and legislative behavior. That out-of-state donors give considerable sums to “off-cycle” incumbents who are not in immediate danger of losing their seats suggests that the electoral calendar plays a fundamental role in shaping donors’ motivations and influencing legislators’ fundraising strategies. Future studies of campaign financing can gain a more complete understanding of the causes and effects of money in politics by accounting for legislators’ electoral environments and the timing of campaign contributions.

Moreover, the results of this analysis suggest that legislators are not simply passive recipients of campaign contributions; rather, they strategically posture to and mobilize support from wealthy out-of-state donors, particularly when they are not actively campaigning. In principle, the growth of off-cycle fundraising by senators ensures that future elections will continue to increase in cost. In this way, legislators are

partly responsible for the long-term cycle of growth in campaign receipts.

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Supplemental Material

Supplemental material for this article is available online.

Notes

1. Source: Federal Election Commission. By comparison, the inflation rate of the US dollar between 1990 and 2020 was approximately 98%.
2. [Hunt and Rouse](#) (forthcoming) find that state legislators with “deep local roots” tend to be less ideologically polarized, which implies that reliance on out-of-state money has a polarizing effect on legislators.
3. [Box-Steffensmeier and Grant](#) (1999) measure legislative effectiveness as “the percentage of bills a member sponsors that make it into law” (p. 514), while [Gui](#) (2023) uses data from the Center for Effective Lawmaking.
4. The data I employ were downloaded from the FEC website between 2016 and 2020, after the historical data were digitized.
5. The “reelection” group in [Figure 1](#) includes all incumbent senators who ran for reelection or who had planned to run but died in office before Election Day (e.g., Paul Wellstone), as well as those who ran but lost reelection. It does not include non-incumbents who won an election and were subsequently appointed to serve out the final weeks of a term.
6. According to [Officialdata.org](#), \$1 in 1989 was worth \$2.03 in 2018, representing an increase of about 103%.
7. I also explored alternative modeling approaches, including a random-effects model and a multilinear regression model using pooled data. The results of these modeling approaches are comparable results of the fixed effects model reported in the findings.
8. For the most part, the FEC and congressional calendars overlap. However, while the FEC’s 2-year election cycles end on December 31 of the year in which a General Election is held, a 2-year congress ends on January 2 of the

year following an election year, which means there is a discrepancy of 2 days in the calendars.

9. [Volden and Wiseman](#) (2014) distinguish between “substantive and significant” bills that receive publicity in the Congressional Quarterly Weekly, and “commemorative bills” that involve private relief to individuals, renaming or commemoration. “Substantive Bills” are all bills that were not commemorative, as well as “commemorative” bills that were considered “substantive and significant.”
10. It would be ideal to use a continuous variable to measure electoral risk. However, election forecasters tend to use categorical variables to estimate the competitiveness of a race. For simplicity, I use a binary variable based on the early forecasting of Senate races. I coded a senator as “at risk” if they were in a seat that was coded as a “toss up,” “leaning,” or as a flip in party control.
11. Replication data for this project is available at https://scholarscompass.vcu.edu/poli_data/

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